

sent to the trustee another letter enclosing the former letter and three of the policies (the other three being in the possession of a mortgagee), and stating that "the enclosed was the formal letter of assignment previous to a deed, and as binding," but no notice of the letters was ever given to the offices, no formal settlement was ever executed, and no second trustee was named; it was held by V. C. Hall, that a complete assignment of the policies had been made, and that the settlement of the policies was binding and effectual (*e*). It may be doubted whether this case was rightly decided, inasmuch as the execution by the settlor of a further instrument was contemplated, and in fact necessary, in order to carry out his intention; but no new principle was intended to be introduced, and the Vice-Chancellor treated the case as falling within *Fortescue v. Burnett* and *Pearson v. Amicable Assurance Office*.]

*If a settlor assign all his personal estate with a [*72] power of attorney, the deed, being perfect and all that was intended, will pass a promissory note, notwithstanding the want of indorsement, which is required for giving it currency (*a*).

8. If the subject of the settlement be partly *incapable* of legal transfer, and partly *capable*, and that part which is capable of transfer is not transferred. In this case all has not been done that might have been done, and no trust is created. Thus where there was a mortgage in fee and the mortgagee assigned the debt with a power of attorney, but did not convey the mortgaged lands, though they were legally transferable, it was held that the settlement was incomplete (*b*).

9. 36 & 37 Vict. c. 66. — By a recent Act, 36 & 37 Vict. c. 66, s. 25, sub-sect. 6, "any absolute assignment by writing under the hand of the assignor (not purporting to be by way of charge only) (*c*), of any *debt* or other *legal chose in ac-*

[(*e*) *Re King*, 14 Ch. D. 179.]

(*a*) *Richardson v. Richardson*, 3 L. R. Eq. 680. But see *Richards v. Delbridge*, 18 L. R. Eq. 11.

(*b*) *Woodford v. Charnley*, 28 Beav.

[(*c*) As to what amounts to such an assignment, see *National Provincial Bank v. Harle*, 6 Q. B. D. 626; *Burlinson v. Hall*, 12 Q. B. D. 347.]